

Kesavananda Bharati v. State of Kerala

Citation: (1973) 4 SCC 225 | Court: Supreme Court | Year: 1973

Coram: 13-Judge Constitution Bench (7:6 Majority) | Subject: Constitutional Law | Provisions: Article 368 & 24th, 25th, 29th Amendments

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Parliament possesses wide constituent power to amend any part of the Constitution under Article 368, but this power does not extend to altering, damaging, or destroying its Basic Structure. The Basic Structure Doctrine is the supreme guardian of Indian constitutional democracy.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Article 368 & 24th, 25th, 29th Amendments. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€¢ Whether the impugned state actions or commercial conduct conformed to Article 368 & 24th, 25th, 29th Amendments.
- â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Overruled Golak Nath (1967) while rejecting absolute parliamentary sovereignty. The supremacy of the Constitution, republican democracy, secularism, separation of powers, and judicial review are non-negotiable core pillars.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€¢ Formulated the immortal Basic Structure Doctrine limiting Article 368 amendment power.
- â€¢ Largest bench in Indian judicial history (13 Judges; 7:6 majority verdict).
- â€¢ Preserved the constitutional identity and democratic fabric of the Republic of India.